

MOTION FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSIONS BE DEEMED ADMITTED

TENTATIVE RULING: The motion is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff moves, pursuant to Code of Civil Procedure sections 2023 and 2033.280, for an order that the genuineness of any documents and the truth of all specified matters in Plaintiff's Requests for Admissions, Set. No. 1 be deemed admitted. The Motion is made on the grounds that Defendant failed to serve responses to the RFAs.

"If a party to whom requests for admission are directed fails to serve a timely response, . . . [t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted." (§ 2033.280, subd. (b).) "The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (§ 2033.280, subd. (c).)

Plaintiff submits evidence demonstrating that the discovery was properly propounded and timely responses were not served. (Declaration of Veronika Rakhlina, at ¶¶ 2, 4.) As such, the Court orders that the genuineness of the documents and the truth of the matters specified in the RFAs are deemed admitted.

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Julian Murillo v. Nissan North America, Inc.

24CV001704

PLAINTIFF'S MOTION FOR ATTORNEY'S FEES

TENTATIVE RULING: The matter is CONTINUED to September 23, 2026, at 8:30 a.m. in Dept. A. Prior to the next hearing, moving party shall file and serve an amended notice which includes proper notice of the Court's tentative ruling system as required by Local Rule 2.9.

The Order to Show Cause re: Dismissal is continued to December 15, 2026, at 8:30 a.m. in Dept. A.